

PHIL 381: Midterm Exam

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Short Essay One: Rights, Liberty, and Speech

SHORT ESSAY 1 (350-750): B: MacKinnon (PR 376ff.) seems to be claiming that pornography violates women's rights—or a woman's rights. Which right does her account suggest is most violated and why? Use Mill's thought (PR 310ff., 328ff., and/or 356ff.) and particularly his thought on “the appropriate region of human liberty” (PR 312A) as resource in developing your essay.

Catherine MacKinnon's *Pornography, Civil Rights, And Speech* is an excerpt explaining the civil rights violation that pornography promotes against women. MacKinnon claims that pornography creates an artificial narrative about women and this coercive narrative strips away women's rights to free consciousness. This is clearly visible when we apply Mill's idea of liberty and “free consciousness” to MacKinnon's case. Therefore, Mill's definition of liberty supports MacKinnon's claim that pornography violates women's rights via libel.

First, we must define pornography. Pornography is defined as “the graphic sexually explicit subordination of women through pictures or words that also includes women dehumanized as sexual objects...in a context that makes these conditions sexual.” (MacKinnon 378). This definition of pornography highlights the framework in which pornography portrays women. If this is how women are being portrayed, then pornography is stripping women of their right to be a free conscious being.

What does that mean? It means that men are basically slandering how a woman behaves. For instance, pornography portrays women as “desperately [wanting] to be bound, battered, tortured, humiliated, and killed” (MacKinnon 376), which is simply not true. This is a narrative being promoted and pushed onto the public about women's character and behavior. Even if some women do want this, the narrative pornography pushes is that all women want this, which is simply false.

Mill would agree that pornography is a violation of women's rights because of his thoughts regarding liberty presented in his work: *On Liberty*. For instance, Mill writes “the principle requires liberty of tastes and pursuits; of framing the plan of our life to suit our own character; of doing as we like, subject to such consequences as may follow; without impediment from our fellow-creatures, so long as what we do does not harm them even though they should think our conduct foolish,

perverse, or wrong.” (PR 312). It’s clear here that Mill agrees that pornography violates women’s rights because it strips them of the right to create their own self presentation best suited to their own character. Pornography prevents women from creating their narrative and instead pushes a false sexual presentation of women.

Clearly, MacKinnon’s argument that pornography strips away a women’s right to choose her own narrative is warranted. Pornography is obviously participating in and promoting libel against women’s character. Thanks to Mill, we are able to clearly see the violation pornography commits against a woman’s persona. Therefore, pornography violates women’s rights via libel.

Short Essay Two: Liberty, Personhood, and Privacy

SHORT ESSAY 2 (350-750): Noonan (PR 428ff.) calls our attention to “Kelsenite logic.” What is Kelsenite logic, what for Noonan are the implications of this logic on legal rights, and how might this ‘logic’ elucidate White’s and Rehnquist’s dissenting opinion (PR 426ff.) in *Roe v. Wade* and/or Scalia’s dissenting in *Planned Parenthood v. Casey* (PR 441ff.)?

Kelsenite logic is that “a person is simply a construct of the law” (Noonan 428). Essentially meaning that a person is born from law. What does it mean to be born from law? It means that you are whatever the law makes you. Therefore, under Kelsenite logic, we are constructed by law.

Noonan thinks the implications of this logic are that “there is no kind of human behavior that, because of its nature, could not be made into a legal duty corresponding to a legal right. When one thinks of the vast variety of human behavior it is at least startling to think that every variation could be converted into legal duties and legal rights” (Noonan 428). In other words, this type of logic implies that for all the different ways of behaving each one of them can be converted to either a legal right or legal duty.

This logic elucidates White’s dissenting opinion in *Roe v. Wade* because White’s discourse specifically mentions that “[the Constitution] values the convenience, whim, or caprice of the putative mother more than the life of potential life of the fetus.” (White 426) Examining this through

the lens of Kelsenite logic, the court gives the mother personhood, while denying the same to the unborn child. The decision, therefore, is not a decision regarding a mother's right to choose, but a decision regarding who or what is considered a person. This situation is made even more clear by the end of Justice White's opinion when he mentions that the states are "disentitled" to weight the development of the fetus against the impact to the mother.

This logic elucidates Rehnquist's dissenting opinion in *Roe v. Wade* because of its usefulness in dissecting his argument regarding the legal recognition and treatment of the "three distinct terms" (Rehnquist 427) of pregnancy. Applying Kelsenite logic here is both straightforward and illuminating: the court has the power to determine at exactly which point laws may be made to restrict the ability to terminate an unborn child.

When examining *Roe v. Wade*, Kelsenite logic is very valuable, and provides insight as to how our legal system can "normalize" actions that may be unconscionable under different circumstances. The ability to define personhood, among other things, provides a baseline for morality that is rooted in our justice system. Noonan argues that Kelsenite logic allows judges to "dispense with correspondence to reality" (Noonan 431), something which certainly deserves deeper scrutiny.

Longer Essay

LONG ESSAY (1400-2000): 2: Consider *Griswold v Connecticut*, widely regarded as 'landmark' for its establishing a constitutional right to privacy beyond that implied in constitutional amendments—and, consider more specifically the six *Griswold's* opinions in our textbook (PR 404ff.). Consider too our textbook's selection of Mill's thought (PR 310ff., 328ff., and 356ff.). Would Mill have agreed that there is a moral right to privacy? If so, which ones (plural) of the decisions in *Griswold* would Mill have sided with, and why? Which of the decisions would Mill most have sided with, and why? Which of the decisions would Mill least have sided with and why?

To understand Mill's position on privacy, we should first agree upon a definition of privacy and understand the impact it would have. Broadly, privacy can be defined as the *ability to express*

oneself selectively. The right to privacy would enable an individual to conceal details about themselves and their activities. In contemporary law, privacy is considered a basic right. The Fourth Amendment to the United States Constitution is commonly interpreted as granting a right to privacy.

Furthermore, we must understand what it would mean for privacy to be a *moral right*. A moral right is often also a legal right, and is therefore protected by law. Moral rights, like our civil rights, protect us from the federal government in all situations. These guarantee certain protections and freedoms universally, and are very effective at determining the limits of the government. Enforcing a right as a moral right can be an appropriate way to guarantee the right. However, a moral right is not the only way in which a right can be granted.

John Stuart Mill would have agreed that there is an *implicit* right to privacy, but not necessarily a moral one. If we consider privacy the ability to express oneself selectively, and to keep some things secret, we can examine it against Mill's assertion that the only reason to interfere "with the liberty of action of any of their number, is self-protection" (Mill 310). Certainly, violating the privacy of an individual does not serve self-protection. A possible exception to this is if a matter that an individual is keeping private may do harm to others.

When strictly considering the right to privacy to be a *moral* one, Mill would not have been likely to support it on its own. The reason is because he rejects the notion of an "abstract right" (Mill 311). He sees utility as being the ultimate good, rather than there being some other form of right. When considering strictly utility, a *moral* right really has no place. A moral right to privacy should only exist if its presence serves to maximize utility. As soon as a right to privacy curtails utility or detracts from humans, it should no longer be a right.

Mill's discourse is written such that it should retain as much flexibility as possible. He not only expects to be proven wrong at some point, but nearly hopes for it. Indeed, he nearly predicts the failure of his own philosophies as well as those of his contemporaries (and even his successors) when he says that "the majority of eminent men of every past generation held many opinions now known to be erroneous" (Mill 357). With respect to this statement, it seems unlikely that Mill would

hold opinions concerning “moral rights” knowing that these opinions are subject to change.

The decision Mill would most have sided with is the opinion of Justice Douglas. This is clear because of his last sentence that marriage is “an association for as noble a purpose as any involved in our prior decisions ” (Douglas 406). This closely resembles Mill’s protection of “pursuing our own good in our own way” (Mill 312). Marriage is this sort of freedom - it is a bond between two people that enables them to pursue happiness in their own way. Limiting access to contraceptives through government action hampers this and restricts a fundamental freedom that causes no harm to others.

Additionally, Justice Douglas specifically addresses the fact that Griswold and Buxton “gave information, instruction, and medical advice” (Douglas 404). Mill makes a concurring statement when he says people should “be free to consult with one another about what is fit to be so done” (Mill 330). Giving medical advice certainly falls within that realm, and Douglas raising this as a point aligns his opinion even more strongly with the views of Mill.

Closely behind the opinion of Douglas, is the opinion of Justice Goldberg. His opinion clearly lays out that state action which will interfere with the lives of individuals “must be shown ‘necessary, and not merely rationally related, to the accomplishment of a permissible state policy’ ” (Goldberg 407). This parallels Mill’s statement that drunkenness should not be a punishable offense, except in the case that the drunk individual “had once been convicted of any act of violence to others under the influence of drink” (Mill 330). Goldberg’s opinion closely mirrors the dedication to individual liberty and enhancement of personal well-being that Mill promotes.

Goldberg argues that the measure of preventing doctors from providing advice on contraceptives is not effective for upholding Connecticut’s law, and also infringes on personal freedoms. Mill would be likely to push back against a law for these same reasons. The only reason to infringe upon the freedoms of an individual is for “self-protection” (Mill 310), which this law clearly does not meet the standard for.

Mill also would agree with Justice White’s opinion. The important points laid out here concern the idea that the use of contraceptives by married couples have no detrimental external effects con-

cerning other individuals or the state of Connecticut. I think Mill would find this opinion somewhat less relevant than Douglas and Goldberg's opinions due to White's subsequent speculation about married couples selectively abiding by contraceptive law while forgoing and disobeying laws concerning extramarital affairs (White 410).

Mill would likely have disagreed with Justice Black's opinion. This is because he "regard[s] utility as the ultimate appeal on all ethical questions" (Mill 311). Therefore, it is not reasonable to simply consider the exact provisions of the constitution as the highest law of the land, unless it would maximize utility to do so. Justice Black found the law "offensive" but decided to take a metered approach of strictly interpreting the constitution when deciding whether or not to strike it down. This does not conform well to Mill's *modus operandi* and would likely have resulted in dissent.

Justice Black focused on the constitutionality of the law, and whether or not the constitution permitted the federal government to strike down the law. This likely would not have been the paramount concern for Mill. Rather, the infringement on individual liberties would overshadow the need for constitutional precision. This isn't to say Mill wouldn't have considered the rule of law important here, just that he would have given it less weight.

Justice Stewart's opinion has a similar conflict to the ideas of John Stuart Mill. Stewart took a similar approach to Justice Black with some important differences. Namely, his approach focused on the encroachment of states' rights by the federal government. Again, when deciding if Mill would agree with Stewart, we should examine this through a utilitarian lens. Does abstaining from interfering with a state law maximize utility? In this case, it's unlikely, as the state law had the ability to interfere with the ability of people to pursue "their own good in their own way" (Mill 312).

John Stuart Mill would most likely have disagreed most with Justice Harlan. Even though Justice Harlan ultimately concurred (although he didn't "join the Court's opinion (Harlan 407)), his reasoning would almost certainly stoke Mill's ire. Much of the argument is quite benign and is simply "off-topic" with regards to John Stuart Mill, but some of it goes almost directly against

what Mill writes.

Justice Harlan focuses a lot on due process and on the necessity of the “intimacy of husband and wife” while maintaining an opinion that “[a]dultery, homosexuality, fornication, and incest” can still be banned by the state (Harlan 409). These practices, if they do not directly impact others, would be acceptable if viewed through a strictly utilitarian lens, notwithstanding the possible effects they may have on society.

To this point, Mill writes that “[f]ornication must be tolerated, and so must gambling” (Mill 330). Even if some activities are not socially acceptable, so long as they are done in private and are not directly impacting others negatively, they should be allowed. Harlan counters this point by stating that the state “has traditionally concerned itself with the moral soundness of its people” (Harlan 408). This doesn’t serve to maximize utility and appeals to the “abstract right” that Mill stated specifically that he would “forgo.” Mill would likely not have chosen Justice Harlan as his champion.

Overall, Mill would have agreed with the majority opinion and struck down the law. The dissenting opinions were focused on the constitution and how the federal government could articulate with state law. Mill’s discourse focused entirely on the well-being of individuals and society as a whole. He largely eschewed appeals to things like constitutionality. This is consistent with his ideas on how morality and society will evolve.